

SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE, AGENCIES, SYSTEMS, IDENTIFIERS, AND EVENTS — NOT A REAL FILING OR CYBERSECURITY GUIDE COUNTERFACTUAL APPELLATE BRANCH — NEVER FILED OR ENTERED ON THE ACTUAL DOCKET — ISOLATED DOCKET: SYN-CA4-26-CV-4106-CF-NEVER-OCCURRED

Never-Filed Response Ordered on Rehearing

Court: United States Court of Appeals for the Fourth Circuit **Case:** Open Grid Archive v. United States Department of Energy **Isolated docket:** SYN-CA4-26-CV-4106-CF-NEVER-OCCURRED **Filed:** June 17, 2026

At the counterfactual Court’s direction, DOE responds to Open Grid’s petition for panel and en banc rehearing. The petition identifies no overlooked fact, conflict, or exceptionally important question requiring rehearing. It restates the application arguments the unanimous opinion considered and answered.

The opinion does not approve categories by label. It evaluates the corrected premise’s segment correlations, limits 7(E) to implementation relations and supported guidelines, limits 7(F) to four function-bearing groups, and preserves segregability as a distinct inquiry. It affirms sealing only after independent access findings.

Open Grid agrees with most of those limits but seeks additional discussion of individual worksheet entries. An appellate opinion need not reproduce every entry when the record and representative reasoning establish the coherent function. Requiring more would risk disclosing the relation that safe abstraction protects.

This response addresses only the isolated petition. It anticipates no ruling and creates no filing or rehearing event on the actual docket.

Rehearing Standards Are Not Met

Panel rehearing is not warranted merely because a party prefers a different level of detail. The panel understood Open Grid's proximity, overlap, segregation, and access arguments. It responded by stating the governing limits and applying the corrected evidence to the four targets.

The petition identifies no factual arithmetic error, misstatement of the premise, overlooked authority, or inconsistency in the disposition. Its proposed result is the same limited remand requested in the briefs. Repetition does not establish misapprehension.

En banc review is likewise unnecessary. The opinion follows *Grey* on 7(E), *Rein* and *Zaid* on specificity, *Electronic Privacy Information Center* on 7(F) and segregation, and *Company Doe* on sealing. It announces no rule conflicting with another decision.

The combined factual setting is unusual but synthetic novelty is not exceptional importance. The opinion reinforces familiar distinctions rather than collapsing them. Within the exercise, the panel's explicit limits provide adequate guidance. Outside the exercise, the never-filed decision has no precedential effect at all.

The 7(E) Holding Is Expressly Narrow

The opinion affirms only authentic predicates, response ordering, implementation relationships, and guideline values supported by a circumvention prediction. It expressly excludes title blocks, owners, approval facts, neutral purposes, revision history, and other administration that stands independently.

For the wholly withheld trees, the corrected worksheet tests each proposed fragment and explains whether location exposes the protected relation or deletion leaves no useful meaning. The panel reviewed that evidence. It was not required to quote every page-level conclusion in a published opinion.

Open Grid's requested discussion would add little. The governing point is already clear: position matters only when it communicates implementation. The opinion then finds that the assumed entries meet that standard. The petition offers no specific corrected-premise entry that contradicts the finding.

Nor does the opinion conflate techniques with guidelines. It applies *Grey* to the former and identifies the separate circumvention explanation for the latter. Rehearing would not change the rule or the result; it would merely restate the same record assessment at greater length.

The 7(F) Showing Has Functional and Causal Content

The corrected record did not begin with broad labels. Reviewers examined individual documents and segments, then grouped only fields performing one of four functions: duty assignment, contact category, safety reference, or human-linked escalation placement.

Each group has a stated disclosure-to-danger path. Authentic assignment information could focus interference on a person performing a protective function. A contact category could facilitate misdirection. A safeguard reference could identify what an interferer would seek to disrupt. A placement could reveal when protective participation becomes relevant.

The panel explains those paths and notes that headings, general coordination, and safety-adjacent wording remain outside the groups. It also requires an independent reason for every dual marking. That analysis does not approve 7(F) by vocabulary.

Open Grid identifies hypothetical captions that might be public but points to no assumed worksheet mismatch. Rehearing cannot rest on a possibility the corrected premise rules out. The panel properly concluded that the limited correlations satisfy reasonable-expectation review without exposing a person's identity or a real protective practice.

Specificity and Segregability Were Substantively Reviewed

The Vaughn account does more than populate a form. It identifies source and segment, describes function, distinguishes exemptions, records overlap, explains harm, and rests on declarations establishing reviewer knowledge. Public structure and inert controlled placement allow comparison without revealing a value.

The opinion describes that evidence and the challenges it permits. It does not treat a controlled label as proof. It finds that the functional descriptions correspond to the assumed source record. Open Grid's demand for entry-by-entry appellate prose exceeds what meaningful review requires.

Segregability received separate treatment. The protocol tests standalone meaning, positional disclosure, headings, and detachable coordination. The seventeen-passage release shows that reviewers corrected earlier retention. The worksheet then explains remaining fragments, including those proposed from wholly withheld records.

The panel did not infer compliance from numbers. It examined method, released substance, and residual explanations. The petition identifies no particular segment omitted from that corrected account. A remand to conduct an analysis already assumed and judicially reviewed would be purposeless.

The Sealing Ruling Satisfies Company Doe

The corrected court identified common-law and First Amendment access interests, provided notice, considered objections, evaluated alternatives, and made findings for each controlled brief. Public counterparts contain all authorities, history, legal reasoning, and requested relief.

Closure covers only controlled passages illustrating the authentic implementation or human-function fields. The order rejects docket-wide secrecy, retains unrelated filings publicly, and ends thirty days after mandate unless supported findings are renewed. These features are materially and temporally narrow.

Open Grid argues that every passage requires another paragraph of judicial explanation. *Company Doe* requires specific findings, not a word-by-word judicial index where coherent passages share the same protected relation. The assumed order identifies those passages and explains why public disclosure of the genuine value and necessary relational context would defeat the interest.

Session controls follow that legal decision. Disclosure-specific grants, deferred verification, leased views, and revocation do not justify sealing; they ensure that the justified scope is honored. The opinion says exactly that. No rehearing is needed to repeat the distinction.

No Conflict or Exceptional Question Warrants En Banc Review

The petition presents the case as a convergence of several doctrines. The panel's analysis demonstrates that the doctrines coexist without conflict. Law-enforcement purpose is a threshold. Each exemption has its own elements. Segregability is affirmative and separate. Judicial access requires independent findings.

Functional categories are not new. The opinion requires document-level review, coherent functions, and harm linkage. Paired filings are not treated as automatically sealable; they are one less restrictive alternative evaluated after the court identifies the interest and explains closure.

The access mechanics likewise announce no novel legal rule. Public projection, exact grants, content-addressed verification, and revocation implement the hypothetical order. They could not sustain an unsupported order and do not alter constitutional standards.

Because this entire path never occurred, it cannot generate a real circuit conflict. Even within the training assumption, the panel faithfully applies the pinned authorities. The case supplies no reason for the full fictional court to revisit a unanimous, carefully limited application.

Requested Disposition of the Petition

DOE asks the Court to deny panel and en banc rehearing. The opinion should remain unchanged: all four corrected targets are affirmed without remand, subject to the limits expressly stated in its reasoning.

The denial requested would not convert the corrected premise into actual history. It would be another isolated event only if the Court later entered an order on this docket. This response itself assumes no outcome and should not be read as a future ruling.

No party seeks a real operational value. DOE continues to accept public release of titles, ownership, approval, neutral descriptions, revision, recordkeeping, general coordination, and closure text wherever they stand independently. The dispute is resolved by the corrected worksheet and the opinion's functional limits.

Conclusion and Certification

Open Grid's petition shows diligent disagreement, not panel error or exceptional importance. The counterfactual opinion applies the correct legal standards to an assumed record specifically designed to cure the actual showing's weaknesses. Its issue-specific affirmance is neither categorical nor overbroad.

DOE respectfully requests denial of rehearing. It asks for no change to public access, no expansion of controlled eligibility, and no alteration of the thirty-day post-mandate sealing endpoint. Any later order must remain confined to the isolated docket.

This response contains eight logical pages and no controlled field value. It was prepared from the public branch materials and official authorities. It provides no cyber instruction and identifies no real person or system.

Corin Pell certifies service on Tamsin Roe and Leo Marr through the isolated exercise system on June 17, 2026. The response was never filed on the actual appeal and does not disclose or predict the Court's disposition of the petition.

Corin Pell Fictional Counsel for DOE